

§ 1979 provides a remedy which dismissal of petitioners' complaint in the present case does not impair. Otherwise, the protection of the people from local delinquencies and shortcomings depends, as in general it must, upon the active consciences of state executives, legislators and judges.⁷¹ Federal intervention, which must at best be limited to securing those minimal guarantees afforded by the evolving concepts of due process and equal protection, may in the long run do the individual a disservice by deflecting responsibility from the state lawmakers, who hold the power of providing a far more comprehensive scope of protection. Local society, also, may well be the loser, by relaxing its sense of responsibility and, indeed, perhaps resenting what may appear to it to be outside interference where local authority is ample and more appropriate to supply needed remedies.

This is not to say that there may not exist today, as in 1871, needs which call for congressional legislation to protect the civil rights of individuals in the States. Strong contemporary assertions of these needs have been expressed. Report of the President's Committee on Civil Rights, *To Secure These Rights* (1947); Chafee, *Safeguarding Fundamental Human Rights: The Tasks of States and Nation*, 27 *Geo. Wash. L. Rev.* 519 (1959). But both the insistence of the needs and the delicacy of the issues involved in finding appropriate means for their satisfaction demonstrate that their

⁷¹ The common law seems still to retain sufficient flexibility to fashion adequate remedies for lawless intrusions. Compare with the cases cited in *Wolf v. Colorado*, 338 U. S. 25, 30, n. 1; *Bull v. Armstrong*, 254 Ala. 390, 48 So. 2d 467 (1950); *Sarafini v. San Francisco*, 143 Cal. App. 2d 570, 300 P. 2d 44 (1956); *Ware v. Dunn*, 80 Cal. App. 2d 936, 183 P. 2d 128 (1947); *Walker v. Whittle*, 83 Ga. App. 445, 64 S. E. 2d 87 (1951); *Johnson v. Atlantic Coast Line R. Co.*, 142 S. C. 125, 140 S. E. 443 (1927); *Deaderick v. Smith*, 33 Tenn. App. 151, 230 S. W. 2d 406 (1950).